

The Administration of Orissa States Orders, 1948

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State of Odisha - Act

The Administration of Orissa States Orders, 1948

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The Administration of Orissa States Orders, 1948

Rule THE-ADMINISTRATION-OF-ORISSA-STATES-ORDERS-1948 of 1948

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The Administration of Orissa States Orders, 1948

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Notification No. 2-A dated 1st January, 1948. - In exercise of the powers conferred by Section 4 of the Foreign Jurisdiction Act, 1947 (XLVII of 1947) (read with Notification No. 111-1-B, dated the 23rd December, 1947) of the Government of India in the Ministry of States, the Government of Orissa are pleased to make the following Order for the effective exercise of Foreign Jurisdiction in Orissa states namely :

1.

Short title, extent and commencement.

(a)

This Order may be called the Administration of Orissa States Order, 1948.

(b)

It extends to the whole of Orissa State.

(c)

It shall come into force at once.

2.

Interpretation.

(a)

In this Order, unless there is anything repugnant in the subject or context :

(1)

'District' and Sub-division' means respectively 'Revenue District' and 'Sub-division' formed under paragraph 3.

(2)

'Commissioner' means in respect of the states of Athmalik, Bamra, Bonai, Dhenkanal, Gangnur, Hindol Keonjhar, Kalahandi, Pal-Lahara, Patna, Rairekhol, Sonapur, and Talcher, the Commissioner, Northern Division and in respect of States of Athgarh, Baramba, Boudh, Daspaila, Khandapara, Nayagath, Narsingpur, Nilgiri, Ranpur and Tigiria, "the Revenue Commissioner Orissa."

(3)

'Orissa states' means the states of Athgath Athamalik, Bamra, Baramba, Bonai, Boudh, Daspala, Dhenkanal, Gangpur, Hindol, Khandpara, Keonjhar, Kalahandi, Nayagarh, Narsingpur, Nilgiri, Pal-Lahara, Patna, Ranpur, Rairakhoi, Sonapur, Talcher, Tigiria.

(4)

'Provincial Government' means the Government of the Province of Orissa.

(b)

The Orissa General Clauses Act, 1937 (Orissa Act I of 1937), applies for the interpretation of this Order as it applies for the interpretation of an Orissa Act.

3.

Revenue Districts and sub-divisions.

- The areas specified in column (i) of the First Schedule hereto annexed shall be formed into the revenue district named in the corresponding entry in column (ii) with head quarters at the places named in column (iii) and sub-divisions as specified in column (iv) of the said Schedule.

3A.

Executive Authority in the Orissa States.

(a)

Subject to the provisions of this Order and subject also to the general supervision and control of the Provincial Government the Commissioner shall be in charge of the executive administration of the States within his jurisdiction and shall exercise such powers and discharge such functions, as the Provincial Government may assign to him.

(b)

The Provincial Government may appoint such officers as they think fit to be District Magistrates, Additional District Magistrates and Sub-divisional Magistrates of the districts and sub-divisions respectively:

Provided that the same officer may be appointed as the Sub-divisional Magistrate of two or more sub-divisions.

(e)

The Provincial Government may appoint for each district and subdivision as many officers as they deem fit to be Deputy Magistrates and Sub-Deputy Collectors :

Provided that all persons appointed in the Orissa States as District Magistrates, Additional District Magistrates, Sub-divisional Magistrates, and Sub-Deputy Collectors and continuing as such on the date of commencement of this Order shall be deemed to have been appointed as such under this paragraph.

4.

Law to be applied.

(a)

The enactments specified in the first column of the Second Schedule hereto annexed shall, so far as circumstances admit and subject to any amendments to which the enactments are for the time being generally subject, in the territories to which may extend, apply to all Orissa states and any provision of any law in force, whether substantive or procedural and whether based on custom and usage or statutes, in any of the Orissa states which is repugnant to any provision of

any of the said enactments shall to the extent of the repugnancy, cease to have effect from the date of commencement of this Order :

Provided that the further modifications and restrictions set forth in the said Schedule shall be made in the enactments applied :

Provided further that for the purpose of facilitating the application in relation to Orissa states of any enactment applied by this Order to the said States or of any notification, order, scheme, rule, form or bye-law passed, issued or made thereunder any Court, Tribunal or Authority may, subject to any express provision of this Order, construe the enactment, notification, order, scheme, rule, form or bye-law with such alteration not affecting the substance as may be necessary or proper to adopt it to the matter before the Court, Tribunal or authority :

Provided further that in the enactments as so applied (except where the context or modifications hereinbefore referred to otherwise require), reference to "British India" shall be construed as reference to all the Provinces of India and Orissa State.

(b)

As respects those matters which are not covered by the enactments applied to the Orissa States under sub-paragraph (a), all laws in force in any of the Orissa States prior to the commencement of this Order, whether substantive or procedural and whether based on custom and usage or statutes, continue to remain in force until altered or amended by an order under the Foreign Jurisdiction Act, 1947 (XLVII of 1947) :

Provided that the powers that were exercised by the ruler of each such State under any of those laws prior to the commencement of this Order shall be exercised by the Provincial Government or any other officer specially empowered in this behalf by that Government.

Explanation. - In this sub-paragraph the expression "Law" includes rules, regulations, bye laws and orders :

Provided further that the powers exercised by any authority other than the Ruler of such State under any of those prior to the commencement of this Order shall, subject to the provision of paragraph six of this Order, be exercised by the Commissioner or by any subordinate authority specially empowered-in this behalf by the Commissioner in case the authority ceases to function on or after the commencement of this Order.

(c)

As respects those matters regarding which the enactments applied under the sub-paragraph (a) or the lands continued in sub-paragraph (b) are inapplicable, civil, criminal and revenue jurisdiction in the Orissa States shall be exercised in accordance with the principles of justice, equity and good conscience.

5.

High Court.

(a)

The High Court for the time being exercising jurisdiction in the Province of Orissa shall, so far as circumstances admit, exercise the same jurisdiction in all Orissa States and shall have the same powers and functions in such States. Any reference to the High Court in the Laws applied or continued in force under paragraph four shall be construed as a reference to the High Court for the time being exercising jurisdiction in the Province of Orissa.

(b)

The Common High Court for Eastern States Union shall cease to exercise jurisdiction in Orissa States from the date of the commencement of this Order and all cases, suits, appeals, petitions and other proceedings pending in that Court shall, from the aforesaid date, be deemed to have been transferred to the High Court referred to in sub-paragraph (a) the latter High Court shall dispose of the same, in accordance with the law applied or continued in force under paragraph 4, as if the cases, suits, appeals, petitions and other proceedings were instituted before it.

(c)

From the date of constitution of the High Court of Orissa, under the Orissa High Court Act, 1948, the High Court in Patna shall cease to have jurisdiction in any of the Orissa States and all the cases, suits, appeals, petitions and other proceedings pending before that High Court shall, where the Court of Orissa is situated in any of the said States or where the cause of action arose in any of the said States stand transferred by virtue of this Order to the High Court of Orissa.

Explanation. - [Omitted].

6.

Revenue jurisdiction.

(a)

Notwithstanding anything contained in the proviso to sub-paragraph (b) of paragraph 4 of this Order the Commissioner shall be the highest Revenue Authority in all Orissa States and shall exercise all original, appellate, or revisional revenue powers which were exercised by the Ruler of the States prior to the commencement of this Order. He may either on application by a party or on his own motion call for the records of any proceeding of any subordinate Revenue Authority and pass such orders as he thinks fit and may also delegate any or all of his revenue powers either conditionally or unconditionally to any other Revenue Officer subordinate to him:

Provided that nothing in this sub-paragraph shall be construed as affecting his powers as appellate authority-if the laws applied or continued in force under paragraph 4 confer on him such appellate powers.

(b)

Every Sub-divisional Magistrate and any other officer specially-empowered by the Collector shall, within the local limits, exercise the jurisdiction on all revenue matters under the provisions of the Revenue Laws continued in force under paragraph 4 :

Provided that where, prior to the commencement of this Order, original revenue jurisdiction was exercised by the Dewan or Revenue Member or Revenue Minister or Senior State Officer or any other officer of equivalent status, however, designated such original jurisdiction, shall be exercised by the Collector or by any other officer specially empowered in this behalf by the Collector.

(c)

An appeal shall lie from an order, judgement or decree of a Sub-divisional Officer or officer specially empowered under sub-paragraph (b) to the Collector, who may either hear the appeal himself or transfer it to an Additional Collector or to any Revenue Officer subordinate to the Collector and specially empowered by the Commissioner, to hear revenue appeals. The Collector may withdraw to his file any appeal so transferred.

Explanation. - The expression 'Collector' and 'Additional Collector' shall respectively mean the 'District Magistrate' and the 'Additional District Magistrate' of the district constituted under the provisions of the Code of Criminal Procedure, 1898 as applied to the Orissa States.

(d)

Notwithstanding anything hereinbefore contained, the Collector may, either on application by a party or on his own motion, call for the records of any proceedings of any Subordinate Revenue Authority and pass such orders as he thinks fit.

7.

Heads of Departments.

- Subject to the provisions of the Order and subject also to the laws that are applied or continued in force under paragraph 4, all the Heads of Departments of the Provincial Government shall exercise the same powers, functions and jurisdiction in Orissa States which they at present exercise in the Province of Orissa.

Explanation. - In this paragraph the expression "Heads of Departments" means the Chief Engineer, Public Works Department, the Director of Public Instruction, the Director of Veterinary Services, the Director of Health and Inspector-General of Prisons, the Inspector General of Police, the Collector of Commercial Taxes, the Controller of the Supply and Transport, the Director of Agriculture and Food Production , the Director of Industries, the Registrar of Co-operative Societies, the Inspector-General of Registration and any other officer who may be declared as such by the Provincial Government.

8.

Claims against Rulers of the States.

(a)

The Chief Administrator, shall as soon as possible, publish a notification in the Gazette in English and in vernacular calling upon all persons having pecuniary claims, whether immediately enforceable or not, against any of the Orissa States or the Rulers of any such State in his capacity as Ruler of that State, to notify the same in writing to an officer authorised in this behalf by the Commissioner within three months from the date of the notification.

Explanation. - A claim shall be deemed to be pecuniary for the purpose of this paragraph, notwithstanding that a suit for its enforcement or a reference of such claim to arbitration is pending or that a decree or award has been passed establishing the same.

(b)

The notice shall also be published at such places and in such other manner as the Chief Administrator may by special or general order direct.

(c)

Every such claimant shall, within the period specified in subparagraph (a) notify to the officer authorised by the Commissioner under sub-paragraph (a) in writing his claim with full particulars thereof and any claim presented after the expiration of such period shall be summarily rejected.

(d)

Every document including entries in books of account in the possession of or under the control of the claimant on which he finds his claim shall be produced before the Administrator along with the statement of the claim :

Provided that if the claim relates to an amount secured by a decree or awards, it shall be sufficient for the claimant to produce before the Administrator a certified copy of the decree and certificate from the Court which passed or is executing the same declaring the amount recoverable thereunder or a true copy of the award and a statement of the sum recoverable thereunder, as the case may be, and if the claim is pending adjudication in any Court or has been referred to arbitration, it shall be sufficient for the claimant to produce a certified copy of the plaint or a true copy of the reference to arbitration as the case may be.

(e)

Unless the Administrator shall otherwise direct, every document produced under sub-paragraph (a) shall be accompanied by a true copy thereof. The Administrator shall mark the original document for the purpose of identification and after examining and comparing the copy with it shall retain true copy and return the original to the claimant.

(f)

Nothing in the preceding sub-paragraph shall apply to any pecuniary claim of Government or any local authority.

(g)

The Administrator shall, after making such enquiry as he may deem fit, decide which claims notified under subparagraph (c) are to be allowed in whole or in part and which are to be disallowed and on his decision, being confirmed by the Commissioner. Administrator shall give written notice of the same to the claimants. The decision of the Commissioner shall be final and shall not be liable to be called into question in any Court whatsoever.

(h)

No Court shall have jurisdiction to investigate any pecuniary claim against the State or against the Ruler of the State in his capacity as Ruler of that State and such claim shall be determined only in accordance with the provisions of the paragraph.

(i)

The Commissioner may delegate his powers under this paragraph to any officer other than an Administrator subordinate to him.

(j)

The provisions of this paragraph shall not apply to any claim against any Orissa state based on cause of action which arose on or after the 1st January, 1948 and such claim shall be disposed of in accordance with the laws applied or continued in force under paragraph 4.

9.

Audit.

- The Controller of Orissa shall perform such duties and exercise such powers in relation to the account of the Orissa states, as may be prescribed by rules made under this Order by the Provincial Government.

10.

Modification of the Tenancy Laws.

(a)

Notwithstanding anything contained in the Tenancy Laws of the states as continued in force under sub-paragraph (b) of paragraph 4 an occupancy tenant shall be entitled-

(i)

to freely transfer his holding subject to the restriction that no transfer of a holding from a member of an aboriginal tribe to a member of a non-aboriginal tribe shall be valid unless such transfer is made with the previous permission of the Sub-divisional Magistrate concerned ;

(ii)

to have full right over all kinds of trees standing on his holding

(iii)

to use the land comprised in the holding in any manner which does not materially impair the value of the land or render it unfit for the purposes of the tenancy ;

(iv)

to presume that the rent for the time being payable by him is fair and equitable until the contrary is proved.

(b)

Where a rent of an occupancy tenant is payable in cash, it shall not be liable to be enhanced except in accordance with the Tenancy Laws continued in force in the state concerned.

(c)

An occupancy tenant shall not be liable to ejectment from his holding except in execution of a decree for ejectment passed on the ground that-

(i)

he has used the land comprised in his holding in a manner which renders it unfit for the purpose of the tenancy; or

(ii)

he has broken a condition consistent with the provisions of the Tenancy Laws in force in the state concerned and on breach of which he is under the terms of a contract between himself and his landlord liable to be ejected.

(d)

The interest of an occupancy tenant in his holding shall on his death pass by inheritance or survivorship in accordance with his personal law.

(e)

A "Sukhabasi" shall be entitled to the rights at an occupancy tenant over his homestead notwithstanding any law or custom to the contrary.

Explanation. - (1) An "occupancy tenant" means a tenant or a raiyat having occupancy rights in his holding under the Tenancy Laws continued in force in the various states under sub-paragraph (b) of paragraph 4.

(2)

An "aboriginal tribe" means any tribe that may from time to time be notified as such by the Provincial Government for the purpose of this Order.

(3)

A "Sukhabasi" means any person holding only homestead whether or not recorded in the settlement papers as , Ghar" "Bari" or "Gharbari" or a person who is granted land by the Thikadar or by a competent Revenue Officer for the purpose of using it as homestead.

10A.

Notwithstanding anything contained in the Tenancy Laws of the states as continued in force under sub-paragraph (b) of paragraph 4-

(a)

when land is held as service tenure either under the Ruler or any member of his family the liability of the holder of such tenure to render service for the use and occupation thereof shall cease, and he shall on payment of full assessment to the Provincial Government acquire occupancy right therein ;

(b)

when a person holds Khamar, Nij-jote or any other private lands of a Ruler which has been recognised as such by the Provincial Government he shall not be liable to pay such fair and equitable rent as may be fixed by any competent authority appointed in this behalf by Commissioner and thereupon he shall acquire right of occupancy in respect of such lands:

Provided that such liability of the holder of any service tenure shall not cease and no occupancy right shall accrue to him therein if on the application of the Ruler the Provincial Government direct that the holder shall continue to render such service.

11.

Continuance of existing taxes, duties, fees, etc.

- Until other provisions to the contrary are made by or' under this Order, all taxes, cesses or fees, which, immediately before the commencement of this Order, were being lawfully levied by any Ruler of any Orissa state or any local

authority under any law for the time being in force in such state shall continue to be levied :

Provided that duties on the entry or exit of goods into or from any Orissa states, and Bethi, Begari, Mangam, or other customary dues cease to be levied from the date of the commencement of this Order.

12.

Transitory provisions.

(a)

Subject to the provisions of this Order and subject also to any notification or order that may be issued under the laws applied or continued in force under paragraph 4, all persons who immediately before the commencement of this order were exercising lawful functions in the state and who are continued in service by the Provincial Government and in cases where such persons were exercising functions by virtue of their office, their successors in office as well, shall until other provisions are made by or under this Order by the appropriate authority continue to exercise those functions :

Provided that nothing in this sub-paragraph shall affect the provisions of Clause (b) of Rule 2 of the Transfer Rules, 1944 of Patna State.

(b)

All Officers who, having been invested with power equivalent to those of a Sub-divisional Magistrate or a Magistrate of the first class or second class or third class by a competent authority prior to the 1st January, 1948, continue to exercise those powers under subparagraph (a) shall be deemed to have been invested with the powers of such Magistrate under the Code of Criminal Procedure, 1898 (V of 1898), as applied to the Orissa state under paragraph 4 and no proceedings before any such Magistrate shall be called into question in any Court whatsoever on the ground that the said Magistrate was not validly invested with such powers under the said Code as so applied.

(c)

All appeals, revision petitions and other proceedings that were pending before any Civil, Criminal or Revenue Court constituted or continued by or under this Order, and exercising jurisdiction which, as far as may be, corresponds to the jurisdiction of the Court before, which such appeals and petitions were filed and such proceedings were commenced :

Provided that the law to be followed by such Courts shall be the law . applied or continued under paragraph 4.

Explanation. - The expression "Functions" includes the powers, of a Civil, Criminal and Revenue Courts.

13.

Pending proceedings.

- For the purpose of this Order, proceedings shall be deemed to be pending in the Court until that Court has disposed of all issues between the parties including any issue with respect to the taxation of the costs of the proceedings.

14.

Savings.

- All things done, actions taken, powers exercised, functions discharged, notifications or orders issued by an Administrator or the Chief Administrator or Special Commissioner under any law for the time being in force in the Orissa states shall be deemed to have been done, taken, exercised, discharged or issued by the appropriate authority competent under this Order.

I

[See Paragraph 3]

Sl. No.(1)

Area(2)

Name of the District(3)

Name of the headquarters(4)

Sub-Divisions

Sl. No.

Area

Name of the District

Name of the headquarters

Name

Territorial Limits

(1)

(2)

(3)

(4)

(5)

(6)

1.

The whole of the states of Dhenkanal, Athamallik, Hindol,
Pallahara, Rairakhol and Talcher

Dhenkanal

Dhenkanal

Dhenkanal Sadar, Parjanga, Kamakshayanagar

As existing on the 31st December, 1947.

Pallahara Sadar

Athamallik Sadar

The whole of State of Pallahara

Talcher Sadar Kannia*

The whole of State of Pallahara.

Rairakhol Sadar

The whole of the State of Hindol.

Hindol Sadar

The whole of the State of Hindol.

2.

The whole of the states of Ganghpur and Bonai

Sundargarh

Sundargarh

Sundargarh Sadar Panposh, *Bonai, Sadar

As existing on the 31st December, 1947.

3.

The whole of the State of Keonjhar

Keonjhar

Keonjhar

Keonjhar Sadar, Anandpur, Champua

As existing on the 1st January, 1948.

4.

The whole of the States of Patna, Sonepur and Kaiahandi

Bolangir Patna

Bolangir

Bolangir Patna, Sadar, Titilagarh Patnagarh, Kalahandi Sadar,

Thuamul Rampur, Dharmagarh, Sonepur Sadar, Birmaharajpur

As existing on the 31st December, 1948.

5.

The whole of the states of Nayagarh, Ranpur Daspalla and

Khandapara

Nayagarh

Nayagarh

Khandapara Sadar

The whole of the State of Khandapara

Nayagarh Sadar

The whole of the State of Nayagarh

Daspalla Sadar

The whole of the State of Daspalla

Ranpur Sadar

The whole of the State of Ranpur

6.

The whole of the States of Athagarh, Tigiria, Baramba and

Narasinghpur

Narasinghpur

Narasinghpur

Baramba States

The whole of State of Baramba

Narsinghpur Sadar

The whole of the State of Narsinghpur

Tigiria Sadar

The whole of the State of Tigiria

Athagarh Sadar

The whole of the State of Athagarh

7.

The whole of the State of Bamra

Bamra

Deogarh

Bamra Sadar

As existed on the 31st December, 1947.

8.

The whole of the State of Nilgiri

Nilgiri

Kuchinda

Nilgiri Sadar

The whole of the State of Nilgiri

9.

The whole of the State of Boudh

Boudh

Boudh

Boudh Sadar

The whole of the State of Boudh.

*This was omitted.

II

[See Paragraph 4]

Central Acts

Enactments applied

Further modifications and restrictions

(1)

(2)

1.

The Interest Act, 1839 (XXXII of 1839).

2.

The Judicial Officers' Protection Act, 1850 (XVIII of 1850).

3.

The Caste Disabilities Removal Act, 1850 (XXI of 1850).

4.

The Recusant Witness Act, 1853 (XIX of 1853).

5.

The Legal Representatives' Suits Act, 1855 (XII of 1855).

6.

The Penal Servitude Act, 1855 (XXIV of 1855).

7.

The Hindu Widows Remarriage Act, 1856 (V of 1856).

8.

The Forfeiture Act, 1859 (IX of 1859).

9.

The Indian Penal Code, 1860 (XLV of 1860).

9-A.

The Societies Registration Act, 1860 (XXI of 1860).

10.

The Police Act, 1861 (V of 1861).

(a) Reference to an Inspector-General of Police shall be construed as reference to Inspector General of Police, Orissa.

(b) To Section 8 the following proviso shall be added, namely :

"Provided that every Police Officer appointed to the Police Force in any Orissa state prior to the 31st December, 1947 and continued in service after that date shall, till the 31st March, 1948, be deemed to be a Police Officer for the purpose of this Act but after the latter date he shall cease to be a Police Officer unless he is controlled under this section".

(c) In Section 46, Sub-section (1), and the first fourteen words of Sub-section (2) shall be omitted.

10-A.

Press and Registration of Books Act, 1867 (XXV of 1867).

11.

The Indian Divorce Act, 1869 (IV of 1869).

12.

The Court fees Act, 1870 (VII of 1870).

(a) As amended by Orissa Act V of 1939.

(b) Omit the second and third paragraphs of Sub-section (1) and Section 1-A.

(c) For the words "appropriate Government" the words "Provincial Government" shall be substituted.

13.

The Female Infanticide Act, 1870 (VII of 1870).

Omit Section 7

14.

The Cattle Trespass Act, 1971.

(a) Omit Sub-section (2) of Section 1.

(b) In Section 6 for "Provincial Government" substitute "Magistrate of the District".

15.

The Indian Evidence Act, 1872 (1 of 1872).

(a) Omit paragraphs 2 and 3 of Section 1.

(b) In Section 57, for Clause (1) substitute the following clause namely :

"(1) All laws or rules having the force of

law or hereto in force or hereinafter to be in force in any Province of India or Orissa states."

16.

The Special Marriages Act, 1872 (III of 1872).

17.

The Indian Contract Act, 1872 (IX of 1872).

Omit the 2nd paragraph of Section 1.

17-A.

Indian Christian Marriage Act, 1872 (XV of 1872).

18.

The Indian Oaths Act, 1873 (X of 1873).

19.

The Married Women's Property Act, 1874 (III of 1874).

20.

The Indian Majority Act, 1875 (IX of 1875).

21.

The Indian Law Reports Act, 1875 (XVIII of 1875).

Omit the third paragraph of Section 1.

22.

The Specific Relief Act, 1877 (1 of 1877).

22-A.

The Indian Treasure Trove Act, 1878 (VI of 1878).

In Section 9, for the words "Chief Controlling "Revenue Authority" the word "Commissioner" shall be substituted.

23.

The Elephant's Preservation Act, 1879 (VI of 1879).

Omit the third paragraph of Section 1.

24.

The Legal Practitioners' Act, 1879 (XVIII of 1879).

(a) Omit the third paragraph of Section 1.

(b) As amended by the Orissa Act VI of 1938.

(c) For the words "the Chief Controlling Revenue Authority" wherever they occur, the words "Commissioner, Orissa States" shall be substituted.

(d) After Section 41, add the now section. '42.

Savings. Until other provisions are made by or under this Act-

1. All persons enrolled as Advocates in the register of the Common High Court of Orissa and Chhatisgarh states shall be deemed to be Advocates for the purpose of this Act,

2. All persons enrolled as Pleaders under the authority of the said High Court and such other persons who were in the list of Pleaders in any of the Orissa states on the 31st December, 1947 and are found fit to continue to practise as such by the High Court of Orissa for such period or periods as it considers necessary subject to such terms and conditions as may be imposed in that behalf by the said High Court shall be deemed to be Pleaders for the purposes of this Act; and

3. All persons who have passed the Mukhtarship examination held under the authority of the High Court of Patna

or Calcutta or the Mukhtarship examination conducted by a Board constituted in any of the Orissa states and were practising as Mukhtars in any of the Orissa states on the 31st December, 1927 and are found fit to continue to practise as such by the High Court of Orissa for such period or periods as it considers necessary subject to such terms and conditions as may be imposed in that behalf by the said High Court, shall be deemed to be Mukhtar for the purpose of the Act".

24-A.

Kazi Act, 1880 (XII of 1880).

25.

The Indian Trusts Act, 1882 (II of 1882).

Omit the second paragraph of Section 1

26.

The Transfer of Property Act, 1882 (IV of 1882).

In Section 1, omit the second, third, fourth and the last paragraphs.

27.

Powers of Attorney Act, 1882 (VII of 1882).

Omit the second and third paragraphs of Section

1.

28.

The Land Improvement Loans Act, 1883 (XIX of 1883).

(a) Omit Sub-section (2) of Section 1.

(b) In Section 3, after the words "a district" the words "The District Magistrate" shall be inserted.

(c) For Section 12, the following section shall be substituted, namely :

(d) 12. The powers conferred on the Provincial Government by Sections 4 (1), 5 (1) and 10 may be exercised in the like manner and subject to the like conditions by the Commissioner, Orissa states.

29.

The Agriculturists Loans Act, 1884 (XII of 1884).

(a) Omit Sub-section (2) of Section 1.

(b) As amended by Orissa Act VI of 1937.

(c) In Sub-section (1) of Section 4, the words or in a province for which there is a Board of Revenue or Financial Commissioner", "such Board of Financial Commissioner, Orissa states" shall be substituted.

29-A.

Births, Death and Marriages Registration Act, 1886 (VI of 1886).

30.

The Suits Valuation Act, 1887 (VII of 1887).

31.

The Provincial Small Cause Courts Act, 1887 (IX of 1887).

Omit Sub-sections (2) and (3) of Section 1.

32.

The Bengal, Agra and Assam Civil Court Act, 1887 (XII of

1887).

(a) Omit Sub-sections (2) and (3) of Section 1.

(b) For Section 2, the following section shall

be substituted, namely:

"2. Saving.(1) All Courts

(whether known as Courts of Munsiffs of Subordinate Judges of the Second Class or by any such expression) other than the Courts of the Subordinate Judge with unlimited pecuniary jurisdiction or the Additional Judge or the District Judge constituted appointments, nominations, rules and orders made, jurisdictions and powers conferred and lists published under any enactment for the time being, in force in any Orissa state relating to Civil Courts, shall be deemed to have been respectively constituted, made, conferred and published under this Act";

(2) Any enactment or instrument referring to any law relating to Civil Courts which was repealed either partially or wholly by the application of this Act shall be construed as referring to this Act to the corresponding provisions thereof."

33.

The Charitable Endowments Act, 1890 (VI of 1890).

(a) Omit Sub-sections (2) and (3) of Section 1.

(b) For the words "appropriate Government" wherever they occur, substitute the words "Provincial Government".

(c) In Section 3-

(i) in Sub-section (1) for the word "Indian" substitute the words "The Orissa State", and

(ii) in Sub-section (2) for "India or as the case may be, the Province," substitute the words "Orissa states".

34.

The Guardian and Wards Act, 1890 (VII of 1890).

Omit Sub-sections (2) and (3) of Section 1.

35.

The Partition Act, 1893 (IV of 1893).

36.

The Land Acquisition Act, 1894 (IX of 1894).

Omit Sub-sections (2) and (3) of Section 1.

37.

The Prisons Act, 1894 (IX of 1894.)

Omit Sub-sections (2), (3) and (4) of Section

1.

38.

The Reformatory Schools Act, 1897 (VIII of 1897).

Omit Sub-sections (2) and (3) of Section 1.

38-A.

The Epidemic Diseases Act, 1897 (III of 1897)

38-B.

The Indian Fisheries Act, 1897 (IV of 1897).

39.

The General Clauses Act, 1897 (X of 1897)

(a) Sections 3,4 and 4-A shall stand unmodified provided that for the interpretation of any enactment in the Orissa states the definitions contained in these sections shall be applicable only after effect has been given to any modification, restriction or rule of construction prescribed in respect of the enactment by this Order.

(b) Omit Sections 5 and 5-A.

40.

The Indian Short Titles Act, 1897 (XLIV of 1897).

41.

The Code of Criminal Procedure, 1898 (V of 1898)

(a) In Sub-section (2) of Section 45, the words "Central Government" shall stand unmodified.

(b) To Section 268, the following proviso shall be added, namely :

"Provided that a Court of Session may at its discretion direct that any trial before that Court shall be without jury or without the aid of assessors if the offence took place in any Orissa states where prior to the 1st January, 1948 there, was no trial by jury or with the aid of assessors."

(c) In Sub-section (1) of Section 5,03, after the words "such attendants" the words "if such witness resides in any Province of India or in any area to which this Code has been applied" shall be inserted.

(d) In Section 30, after the words "and Assam", the words "in the Orissa states" shall be inserted.

42.

The Indian Stamp Act, 1899 (II of 1899).

(a) Omit Sub-sections (2) and (3) of Section 1.

(b) As amended by Orissa Act VI of 1943.

(c) All references to "collecting Government" shall be read as referring to the "Provincial Government".

43.

The Glanders and Farcy Act, 1899 (XVIII of 1899).

In Section 10, after the word "Inspector" the words "the Officer-incharge of a Police Station" shall be inserted.

44.

The Prisoners Act, 1900 (III of 1900).

45.

The Code of Civil Procedure, 1908 (V of 1908).

Omit Sub-sections (2) and (3) of Section 1.

46.

The Indian Limitation Act, 1908 (IX of 1908).

(a) Omit Sub-sections (2) and (3) of Section 1.

(b) In Section 13, the words "or the Crown Representative" shall be omitted and the words "Central

Government shall stand unmodified.

(c) Article 149 of the First Schedule shall stand unmodified.

47.

The Indian Criminal Law Amendment Act, 1908 (XIV of 1908).

For the words "that Province" in

Sub-section (2) of Section 1 the words "the territories subject to its administration" shall be substituted.

48.

The Indian Registration Act, 1908 (XVI of 1908).

Omit Sub-sections (2) and (3) of Section 1.

49.

The Whipping Act, 1909 (IV of 1909).

50.

The Anand Marriage Act, 1909 (VII of 1909).

50-A.

Indian Electricity Act, 1910 (IX of 1910).

50-B.

The Prevention of Seditious Meeting Act, 1911 (X of 1911).

50-C.

The Criminal Tribes Act, 1911 (III of 1911).

51.

The Indian Lunacy Act, 1912 (IV of 1912).

Chapter IV of the Act consisting of Sections 37-61 shall not apply.

52.

The Wild Birds and Animals Protection Act, 1912 (VIII of 1912).

53.

The Official Trustees Act, 1913 (II of 1913).

(a) Omit Sub-sections (2) and (3) of Section 1.

In Section 4-

(1) For Sub-section (1) substitute "(1)

The Provisional Government shall appoint an official trustee for the Orissa State."

In Sub-section (2) omit Clause (d).

54.

The Mussalman Wakf Validation Act, 1913 (VI of 1913).

55.

The Destructive Insects and Pests Act, 1914 (XV of 1914).

55-A.

The Local Authorities Loans Act, 1914 (IX of 1914).

56.

The Hindus Dispositions of Property Act, 1916 (XV of 1916).

56-A.

Cinematograph Act, 1918 (II of 1918).

57.

The Provincial Insolvency Act, 1920 (V of 1920).

57-A.

The Identification of Prisoners Act, 1920 (XXXIII of 1920).

58.

The Indian Elections Offences and Enquiries Act, 1920 (XXXIX of 1920).

58-A.

The Police (Incitement of Disaffection) Act, 1922 (XXII of 1922).

59.

The Indian Boilers Act, 1923 (V of 1923).

60.

The Workman's Compensation Act, 1923 (VIII of 1923).

Omit Sub-sections (2) and (3) of Section 1.

61.

The Legal Practitioners (Women) Act, 1923 (XXIII of 1923).

62.

The Musalman Wakf Act, 1923 (XLII of 1923).

63.

The Indian Soldiers (Litigation) Act, 1925 (V of 1925).

Omit Sub-sections (2) and (3) of Section 1.

64.

The Indian Succession Act, 1925 (XXXIX of 1925).

65.

The Contempt of Courts Act, 1926 (XII of 1926).

Omit Sub-sections (2) and (3) of Section 1.

66.

The Indian Trade Unions Act, 1926 (XVI of 1926).

(a) Omit Sub-sections (2) and (3) of Section 1.

(b) References to "appropriate Government" shall be read as references to the "Provincial Government".

67.

The Legal Practitioners (Fees) Act, 1926 (XXI of 1926).

Omit Sub-sections (2) and (3) of Section 1.

68.

The Indian Forest Act, 1927 (XVI of 1927).

Omit Sub-sections (2) and (3) of Section 1.

69.

The Hindu Inheritance (Removal of Disabilities) Act, 1928 (XII of 1928).

70.

The Hindu Law of Inheritance (Amendment) Act, 1929 (II of 1929).

71.

The Child Marriage Restraint Act. 1929 (XIX of 1929).

Omit Sub-sections (2) and (3) of Section 1.

72.

The Transfer of Property (Amendment) Supplementary Act, 1929 (XXI of 1929).

Omit Sub-section (2) of Section 1.

73.

Indian Sales of Goods Act, 1930 (III of 1930).

Omit Sub-sections (2) and (3) of Section 1.

74.

The Hindu Gains of Learning Act, 1930 (III of 1930).

75.

The Mussalman Wakf Validation Act, 1930 (XXXII of 1930).

75-A.

The Indian Press (Emergency of Powers) Act, 1931 (XXIII of 1931).

76.

The Criminal Law Amendment Act, 1932 (XXIII of 1932).

Omit Sub-sections (2) and (3) of Section 1.

76-A.

The Indian Partnership Act, 1932 (IX of 1932).

77.

The Factories Act, 1934 (XXV of 1934).

Omit Sub-sections (2) and (3) of Section 1.

78.

The Payment of Wages Act, 1936 (IV of 1936).

Omit Sub-sections (2) and (3) of Section 1.

79.

The Hindu Women's Rights to Property Act, 1937 (XVIII of 1937).

As amended by Orissa Act V of 1944 in its application to the Province of Orissa.

80.

The Arya Marriage Validation Act, 1937 (XIX of 1937).

81.

The Muslim Personal Law (Shariat) Application Act, 1937 (XXVI of 1937).

Section 6 shall be omitted.

82.

The Criminal Labour Amendment Act, 1938 (XX of 1938).

Omit Sub-sections (2) and (3) of Section 1.

83.

Employment of Children Act, 1938 (XXVI of 1938).

Omit Sub-sections (2) and (3) of Section 1.

83-A.

The Motor Vehicles Act, 1939 (IV of 1939).

1. In Section 2 (a), the following new clauses shall be inserted, namely :

"(1-a) 'Administrator' means the Officer appointed by the Provincial Government to be in-charge of the executive administration of one or more of the Orissa states under sub-paragraph (b) of paragraph 3 of the Administration of the Orissa States Order, 1948.

"(19-A) 'Orissa states' means those states which have been specified in Clause (d) of subparagraph 9 of the Administration of the Orissa States Order, 1948."

(29-A) 'State Transport Service' means a service in which an Orissa state has entire financial interest to or any other Transport Service in which the state may have partial financial interest and in such a case the Provincial Government shall declare such service as State Transport Service for the purpose of this Act.

(b) In Clause (20) after the words "the Regional Transport Authority" the words "or Administration" shall be inserted.

2.(a) In Section 14, the provisions to Subsection (1) of Section 144 shall be omitted.

(b) To Sub-section (2), the following proviso shall be added namely :

"Provided that if the Provincial Government so requires a Provincial Transport Authority or a Regional Transport Authority may consist of a single official".

3. In Sub-section (1) of Section 47 and in Section 55 after Clause (t) the following clauses shall be inserted, namely ;

"(g) other conditions being equal in the interest of proper co-ordination of transport facilities the expediency of giving due consideration to a State Transport Service.

(h) The necessity for preventing unhealthy competition in a route or routes or area on which the State Transport Service may ply."

4. In Section 57 -

(a) In Sub-section (2) after the words "shall be made" the following words shall be inserted namely :

"In the case of the State Transport Service not less than two weeks and in other cases";

(b) In Sub-section (3) after the words "not being less than ten days in the case of an application by the State Transport Service and in other cases" shall be inserted;

(c) In Sub-section (5), after the words "making the representation" the words "and any Administrator if he desires to be heard" shall be inserted.

5. Section 58. For the existing section the following section shall be substituted, namely:

"58. (1) A permit other than a temporary permit issued under Section 6 shall normally be effective without renewal for such period not less than three years, as the Regional Transport Authority may specify in the permit: Provided that if the Regional Transport Authority is satisfied that an existing or a prospective State Transport Service can or is going to be extended to any route or area on the permit within a period of three years from the date on which the permit is to be effective, the permit shall continue for such shorter period as the Regional Authority may consider suitable in order to avoid conflict with the prospective extension of such State Transport Service.

(2) All permits and all authorisations that may be treated as permit under any existing law or custom having the force of law in any Orissa state shall lapse to the extent that any of the provisions or such permit or authorisations is contrary to the provisions of this Act and for the rest shall

not continue in force beyond the 30th September, 1948, unless extended by the Regional Transport Authority having authority in the area before the said date and if so extended, shall continue only for such period as may be specified by the Regional Transport Authority subject to such conditions as are consistent with the provisions of this Act and as may be prescribed by the Regional Transport Authority.

Provided that no order under this Sub-section extending any permit or authorisation which is ab initio void under the existing laws in the State shall be made:

Provided further that the Regional Transport Authority shall in no case extend an existing permit or authorisation beyond a total period of three years from the date of its issue.

(3) A permit may be renewed on an application made and disposed of as if it were an application for permit :

Provided that other conditions being equal an application for renewal shall be given preference over new applications for permits by parties other than State Transport Service.

6. Section 62, For the opening paragraph of Section 62, the following shall be substituted namely :

"Without following the procedure laid down in Section 57, the Regional Transport Authority or an Administration, as the case may be; may grant permits authorising to be used, for a transport vehicle temporarily for a limited period not exceeding four months in the case of permits by a Regional Transport Authority and not exceeding ten days in the case of permits by an Administration."

Section 133. Delete Sub-section (3).

84.

The Dissolution of Muslim marriage Act, 1939 (XXX of 1939).

85.

The Commercial Documents Evidence Act, 1939 (XXX of 1939);

86.

The Arbitration Act, 1940 (X of 1940).

Omit Sub-sections (2) and (3) of Section 1.

87.

The Weekly Holidays Act, 1940 (XVIII of 1940).

(a) Omit Sub-sections (2) and (3) of Section 1.

(b) Section 11-For the word "Province" the words "Orissa States" shall be, substituted (List III).

88.

The Industrial Statistics Act, 1942 (XIX of 1942).

Omit Sub-sections (2) and (3) of Section 1.

89.

The Hindu Married Women's Right to Separate Residence and Maintenance Act, 1946 (XIX of 1946).

90.

The Industrial Employment (Standing Orders) Act, 1946 (XIX of

1946).

91.

The Essential Supplies (Temporary Powers) Act, 1946 (XXIV of 1946).

(a) Sub-section (3) of Section 3 shall be omitted.

(b) Section 5 shall be omitted.

(c) For Section 17, the following section shall be substituted, namely:

"17. Savings- Any order

made or deemed to be made under any law in force in any of the Orissa states on the 31st December, 1947 and relating to matters covered by this Act shall continue in force so far as is consistent with this Act until repealed, modified or altered by a competent authority under this Act. All appointments made, licences or permits granted and directions issued under any such order and in force on the 31st December, 1947, shall likewise continue in force and be deemed to be granted or issued in pursuance of this Act until modified, cancelled or altered by a competent authority under this Act".

92.

The Hindu Marriage Disabilities Removal Act, 1946 (XXVIII of 1946).

93.

The Industrial Disputes Act, 1947 (XIV) of 1947).

Omit Sub-sections (2) and (3) of Section 1.

94.

The Minimum wages Act, 1948 (XI of 1948).

95.

The Employees State Insurance Act, 1948 (XXXIV of 1948).

96.

The Coal Mines Provident Fund and Bonus Schemes Act, 1948 (XLVI of 1949).

96-A.

The Code of Criminal Law Removal of Racial Discrimination Act, 1949 (XVII of 1949).

97.

The Code of Criminal Procedure (Amendment) Act, 1949 (IX of 1949).

97-A.

The Rehabilitation Finance Administration Act, 1948 (XII of 1948).

98.

The Displaced Persons (Legal Proceedings) Act, 1948 (IX of 1948).

For Sub-section (3) of Section 1 of the Act the following sub-section shall be substituted, namely :

"(3) It shall come into force at once."

99.

The Industrial Disputes Procedure (Banking and Insurance Companies) Ordinance, 1949 (Ordinance No. VI of 1949).

(a) Omit Sub-section (2) of Section 1.

(b) For the words "Provincial Government"

wherever they occur, the words "the Orissa states" shall be substituted.

100.

The Code of Criminal Procedure (Amendment) Act, 1949 (XXXII of 1949).

101.

The Hindu Marriage Validity Act, 1949 (XXI of 1949).

Provincial Acts (Bengal)

The Bengal Embankment Act, 1855 (Bengal Act XXXI of 1855).

For the word "Collector" wherever it occurs, the words "District Magistrate" shall be substituted.

Sections 4, 5, 6, 26, 34 and 76 shall apply.

The Bengal Vaccination Act, 1880 (Bengal Act V of 1880).

The Births and Deaths Registration Act, 1873 (Bengal Act IV of 1873).

The Bengal Public Gambling Act, 1867 (Act II of 1867).

The Bengal Ferries Act, 1885 (Bengal Act I of 1885).

Bihar and Orissa Acts

Bihar and Orissa Excise Act, 1915 (Bihar and Orissa Act II of 1915).

(a) Omit Sub-sections (2) and (3) of Section 1.

(b) "Board" means in respect of the estates of Athmalik, Bamra, Bonai, Dhenkanal, Gangpur, Flindol, Keonjhar, Kalahandi, Pallahara, Patna, Rairakhol, Sonopurand Talcher, the Commissioner, Northern Division" and in respect of Athagarh, Bamra, Boudh, Daspalla, Khandpara, Nayagarh, Narasingpur, Nilgiri, Ranpur and Tigiria the Revenue Commissioner of Orissa".

(c) Reference to the Collector shall be construed as reference to the District Magistrate.

(d) In Clauses (a) and (g) of Sub-section (2) of Section 7, the words Commissioner of the Division" shall be omitted.

(e) In Sub-section (3) of Section 8, the words 'or the Commissioner of a Division" shall be omitted and the word "or" shall be inserted after the word "Collector".

(f) For the words "Province" and "the Province of Bihar and Orissa" wherever they occur the words "the Orissa States" shall be substituted.

(g) In Sub-section (2) of Section 34, the words beginning with "to the Commissioner of the Division" ending with "recommendations (if any)" shall be omitted.

(h) In Section 35, the proviso shall be omitted.

(i) Sections 97 and 98 shall be omitted.

The Bihar and Orissa State Aid to Industries Act, 1923 (B.O.

Act I of 1923).

Omit Sub-sections (2) and (3) of Section I as amended by Orissa Act V of 1943 and XXII of 1947.

The Bihar and Orissa Musalman Wakf Amendment Act, 1926 (Bihar and Orissa Act I of 1926).

Bihar and Orissa Co-Operative Societies Act, 1935 (Bihar and Orissa Act VI of 1935).

As amended by Orissa Act 3 of 1942.

Bihar and Orissa Public Demand Recovery Act, 1914 (Bihar and Orissa Act IV of 1914).

(a) Clauses (2) and (3) of Section I shall be omitted.

(b) Section 2 shall be omitted.

(c) In Sub-section (3)-(i) For the words "Secretary of States for India in Council" in Clause (2), the following words shall be substituted, namely: "Governor General or the Governor as the case may be".

(ii) For the words "Commissioner" in Clause (3) the following shall be substituted, namely: "Chief Administrator and Special Commissioner."

(d) In Sub-section (1) of Section 5. the proviso shall be omitted.

(e) in Section 18 (i)-

(i) the words "in council" in Sub-clause (g) shall be omitted.

(ii) Clauses (k) and (a) shall be omitted.

(f) Sub-sections (3), (4) and (5) of Section 26 shall be omitted.

(g) For the words "the Board of Revenue" in Sub-section (1) of Section 48, the following words shall be substituted, namely :

"The Commissioner"

(h) For the word "Commissioner" wherever it occurs, in Section 60, the following words shall be substituted, namely "The Special Commissioner".

(i) For Section 62, the following shall be substituted, namely :

"62. The Collector may revise any order passed by a certificate officer, Assistant Collector, under this Act, and the Commissioner may revise any such order passed by a Collector under this Act".

(j) Section 69 shall be omitted.

(k) For the words "The Bihar and Orissa Gazette" wherever they occur, the following shall be substituted, namely "The Orissa Gazette".

(l) For the word "Province" and the "Province of Bihar and Orissa" wherever they occur, the following shall be substituted, namely "The Orissa State".

(m) In Schedule I-

(i) Clauses (1) and (2) shall be omitted.

(ii) Sub-clause (3) of Clause 4 shall be omitted.

(iii) Clauses (10), (11) and (14) shall be omitted.

(n) In Schedule II-

(i) Sub-clauses (3), (4) and (5) of Clause-26 shall be omitted.

(ii) Sub-clause (3) of Clause 26 shall be omitted.

(iii) the proviso to Clause 27 shall be omitted.

(iv) Clauses (38), (39), (40), (41) and (43) shall be omitted.

The Bihar and Orissa Municipal Act, 1922 (Bihar and Orissa Act VI of 1922).

(1) For Sub-section (2) of Section 1 the following sub-section shall be substituted, namely :

"(2) It extends to the whole of Orissa States".

(2) Sub-section (4) of Section 1 shall be omitted.

(3) For the words "the Province of Bihar and Orissa" wherever they occur the words "the Orissa State" shall be substituted.

Orissa

The Orissa General Clauses Act, 1937 (Orissa Act I of 1937).

The Orissa Hindu Religious Endowment Act, 1939 (Orissa Act IV of 1939).

Omit Clause (b) of Section 2.

The Hindu Women's Right to Property (Extension of Agricultural Land in Orissa) Act, 1944 (Orissa Act V of 1944).

The Orissa Essential Article Control and Requisitioning (Temporary Powers) Act, 1947 (Orissa Act I of 1947).

(a) Omit Sub-sections (2) and (3) of Section 1.

(b) For Section 18, the following section shall be substituted namely:

"18. Savings. Any order made or deemed to be made under any law in force in any of the Orissa states on the 31st December, 1947. and relating to matters covered by this Act shall continue in force so far as consistent with this Act until repealed, modified or altered by a competent authority under this Act. All appointments made, licences or permits granted and directions issued under any such order and in force on the 31st December 1947, shall likewise continue in force and be deemed to be granted or issued in pursuance of this Act until modified, cancelled or altered by a competent authority under this Act".

The Orissa Maintenance of Public Order Act, 1948 (Orissa Act IV of 1948).

(a) Omit Sub-sections (2) and (3) of Section 1.

(b) For the words "Province of Orissa"

the words "Orissa States" shall be substituted.

The Orissa Temple Entry Authorisation Act, 1948 (Orissa Act XI of 1948).

For Sub-section (3) of Section 1, the following sub-section shall be substituted, namely :

"3. Section 1 shall come into force at once and the remaining sections shall come into force in such areas and on such date or dates as the Provincial Government may by notification appoint".

The Orissa Sales Tax Act, 1947 (Orissa Act XIV of 1947).

For the words "Province of Orissa" or 'Orissa' wherever they occur, the words Orissa States" shall be substituted.

The Orissa Motor Spirit (Taxation on Sales) Act, 1946 (Orissa Act IX of 1946).

For the words "Province of Orissa" or "Orissa" or "Province" whatever they occur the words "Orissa States" shall be substituted.

Orissa Entertainments Act, 1946 (Orissa Act V of 1946).

(a) For the words "Province of Orissa" wherever they occur, the words "Orissa States" shall be substituted.

(b) Sections 2 and 13 shall be omitted.

The Orissa Agricultural Income Tax Act 1947 (Orissa Act XXIV of 1947).

(a) For the words "the Province of Orissa" and "Provincial" wherever they occur, the words "Orissa States" shall be substituted.

(b) Sub-section (p) of Section 2 shall be omitted.

(c) After the words and figures "the Angul Laws Regulation 1936", occurring in Clause (d) of Section 6 and in Clause (c) of sub-section (2) of Section 7 the words or under any State Law or custom having the force of law for the time being in force" shall be inserted.

(d) After the words "any Orissa Act" occurring in Clause (e) of Sub-section (2) of Section 7, the words "or State Law for the time being in force" shall be inserted.

(e) For Clause (b) of Sub-section (1) of Section 15, the following shall be inserted, namely :

"(b) Nothing in this Sub-section shall be deemed to entitle an assessee who is assessed to Income-tax Laws for the time being in force in the Orissa States to claim a deduction in respect of any sum paid by him as mentioned in Clause (a) if such sum was exempted under any of the provisions of the said law.

Bihar and Orissa Excise (Orissa Amendment) Act, 1947.

The Utkal University (Amendment) Act, 1949 (Orissa Act III of 1949).

The Orissa Local Authorisation Census Expenses Contribution

Act, 1949 (Orissa Act IV of 1949).

The Orissa Land Encroachment Act, 1947 (Orissa Act XXXIII of 1947).

In Section 2-

(1) For Clause (1), the following clause shall be substituted, namely :

"(a) Land acquired under the provisions of the Land Acquisition Act, 1894, or acquired otherwise for the purposes of Government or any local authority or a Railway company while such land remains as the property of Government, local authority or Railway Company, as the case may be."

(2) For Clause (c), the following clause shall be substituted, namely :

"(c) Land belonging to or recorded as belonging to Government or any local authority which is used for any public purpose as road, canal, irrigation tank, drinking water reservoir, embankment or which is required for repair or maintenance of such road, canal, irrigation tank, drinking water reservoir, or embankment while such land continues to be so used or required".

(3) For Clause (d), the following shall be substituted, namely :

"(d) Communal lands, used or recorded as Gochar, Rakhit, Samasan, Sarba-sadharan and forest in the record of rights prepared under any law for the time being in force in the State".

(4) In the proviso to Section 3 for the words "Orissa Tenancy Act, 1913" the words "Tenancy Law in force in the State" shall be substituted.

(5) In Section 10, after the words, "Revenue Commissioner", "Northern Division" shall be inserted.

The Land Acquisition (Orissa Amendment) Act, 1948 (Orissa Act XIX of 1948).

Orissa Medical Regulation, 1936 (Orissa Regulation II of 1936).

The Orissa Nurses, Midwives Registration Act, 1938 (Orissa Act VII of 1938).

Orissa Food Adulteration Act, 1938 (Orissa Act X of 1938).
Cinematograph Rules, 1939.

The Utkal University Act, 1943 (Orissa Act, XIII of 1943).

The Orissa Preservation of Private Forests Act, 1947 (Orissa Act VIII of 1947).

For the existing Section 3 etc., the following section shall be substituted, namely:

"3. It shall come into force in such area and from such date as the Provincial Government may by notification from time to time direct."

The Orissa Compulsory Labour Act, 1948 (Orissa Act X of 1948).

For Sub-section (3) of Section 1, the following Sub-section shall be substituted

"It shall come into force on such date as the Provincial Government by Notification direct".

The Orissa Court of Wards Act, 1947 (Orissa Act) (XVI of 1947).

The Bengal Embankment (Orissa Amendment) Act, 1947 (Orissa Act of 1947).

The Opium (Orissa Amendment) Act, 1939.

The Orissa Local Fund Audit Act, 1948 (Orissa Act V of 1948)

The Orissa Grama Panchayat Act, 1948 (Orissa Act IV of 1948).

(a) For the words "Province of Orissa" wherever they occur, the words "Orissa States" shall be substituted.

(b) In Sub-section (2) of Section 2 after the words "Union Board" wherever they occur, the words "or any other local authority" shall be inserted.

(c) In Clause (e) of Sub-section (1) of Section 40, after the words "or Panchayat" the words "or of any other local authority" shall be inserted.

(d) For Section 115, the following section shall be substituted, namely :

"115. The Provincial Government may make bye-laws for a Panchayat within the Orissa states consistent with the Act and the rules made with the Act and the rules made thereunder for the purpose of promoting or maintaining the health, safety and convenience of persons residing within the local area of a Grama Panchayat and for furtherance of Administration of Grama Panchayats under the Act."

(e) In Section 116, for the words "District Board" and the Chairman, District Board" wherever they occur the words "The Provincial Government" shall be substituted.

Enactments repealed or amended when the remaining provisions other than those of Chapter VI are brought into force in any specified area

[Section 2]

Year

Short title

Extent of repeal

Where the enactment is in force

(1)

(2)

(3)

(4)

1942.

Rairakhol States Village Panchayat Act

The whole

Rairakhol

1943.

Bonai State Village Panchayat Order

do

Bonai

1939.

Baramba Sanitation Rules, Baramba Praja Parishad Order
do
Baramba
1947.
Raja Nilagiri Sanitation Regulation
do
Nilagiri
1946.
Nilagiri State Village Panchayat Act
do
Nilagiri
1931.
Khandapara Town Sanitation Rules
do
Khandapara
1940.
Dhenkanal State Village Panchayat Act
do
Dhenkanal
Athamallik Panchayat Rules
do
Athamallik
1942.
Ranapur Village Panchayat Act
do
Ranapur
1945.
Ranapurgarh Sanitation Regulation
do
Ranapur
1944.
Athagarh Sanitation Regulation
do
Athagarh
1946.
Pal-Lahara Village Panchayat Order
do
Pal-Lahara
1945.
Nayagarh Town Municipal Rules
do
Nayagarh
1947.
Tigiria Panchayat Rules
do
Tigiria
1947.
Boudh Sanitation Rules
do
Boudh
1939.

Boudh Village Panchayat Order

do

Boudh

Bamra Panchayat Rules

do

Bamra

Rules for the management of Bamra Sanitation Committee

do

Bamra

1946.

Kalahandi Panchayat Order

do

Kalahandi

1945.

Talcher Grama Panchayat Rules

do

Talcher

1947.

Daspalla State Panchayat Order

do

Daspalla

1942.

Gangpur Village Panchayat Act

do

Gangpur

1946.

Keonjhar Village Panchayat Act

do

Keonjhar

The Orissa Development of Industries,
Irrigation, Agriculture, Capital Construction and Re-settlement
of Displaced Persons (Land Acquisition) Act, 1948 (Orissa Act
XVIII of 1948).

The Orissa Removal of Civil Disabilities Act,
1946 (Orissa Act XI of 1946).

The Orissa Stamp (Temporary Amendment) Act, 1949
(Orissa Act V of 1949)

Wherever the words "Province of Orissa"
occur the words "Orissa States" shall be substituted.

Orissa Mohammeda Marriages and Divorces
Registration Act, 1949 (Orissa Act VII of 1949).

For Sub-section (3) of Section 1 the following
sub-section shall be substituted, namely :

The Orissa Opium Smoking Act, 1947 (Orissa Act
XVI of 1947).

"(3) It shall come into force in the Orissa
States, Athagarh, Gangpur, Khandapara, Nayagarh, Nilagiri and
Daspalla at once. In other Orissa States such as Bonai, Bamra,
Baramba, Pallahara, Tigiria, Kalahandi, Sonapur, Rairakhol,
Keonjhar, Athamallik, Bolangirpatna, Dhenkanal, Ranpur, Hindol,
Narasinghpur, Boudh and Talcher, the whole of the Act with the

exception of Section 8 shall come into force on such date as the Provincial Government may by notification appoint in this behalf at the expiration of one year after the said date."

(a) Section 8 shall

come into force;

(b) Section 10 shall

have effect as if the figure '8' were inserted after the figure '7'.

(c) Section 12 shall

have effect as if the figure '8' were inserted after the figure '7'; and

(d) Sub-sections (1)

and (2) of Section 13 shall have effect as if the words "the smoking of opium is carried on in any place or that" were inserted after the words "has reason to believe that".

(i) Reference to the 'Collector' shall be

construed as references to 'District Magistrate'.

(ii) For the Schedule to the said Act, the

following Schedule shall be substituted, namely :

Schedule 3

[See Section 21]

Name of the States where repealed

Enactment repealed

Extent of repeal

(1)

(2)

(3)

Athamallik, Bolangirpatna, Dhenkanal, Ranpur and Rairakhol

The Bihar and Orissa Opium Smoking Act, 1928 (Bihar and Orissa Act 11 of 1928)

Whole

Hindol

Opium Smoking Rules, 1946

do

The Narsinghpur Opium Smoking Act, 1943

do

The Narsinghpur Opium Smoking (Amendment) Act, 1943

do

Boudh

The Opium Smoking Prohibition Order No. 63-Ex. 134-46, dated the 11th September, 1946

do

Athagarh

The Opium Smoking Prohibition Order

do

Gangpur

The Gangpur Opium Smoking Act

do

Khandapara

The Opium Smoking Prohibition Order

do

Nayagarh

The Nayagarh Opium Smoking Act, 1947, prohibiting opium smoking in the State

do

Nilgiri

Notification Prohibiting the smoking of opium

do

Daspalla

The Daspalla Opium Smoking Act

do

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